

Property. (FACC ¶ 28.)" (MPA 8:14-16.) However, it is improper to base a demurrer on facts alleged in the demurring party's separate pleading. And the fact that the MacNeills do not currently occupy the neighboring property is irrelevant if they caused a trespass when they were in possession of the neighboring property. The moving papers submit no proper basis for sustaining the demurrer to this cause of action.

Seventh Cause of Action for Injunctive Relief

This cause of action is premised on the allegation that the Andersons and MacNeills caused to be constructed a fence or wall that intrudes six inches into Elisa's backyard. (SAC ¶¶ 87, 89.)

The demurrer is sustained because injunctive relief is not a cause of action, but a remedy. (*HNHPC, Inc. v. Department of Cannabis Control* (2023) 94 Cal.App.5th 60, 73.) Plaintiffs can seek this relief in the SAC's prayer, but it is not a standalone cause of action.

Eighth Cause of Action for Declaratory Relief

Plaintiffs seek declaratory relief regarding the encroaching concrete fence erected by the MacNeills and Andersons. They seek "a judicial determination regarding that location and encroachment of the fence in relation to the property line, whether the concrete fence is a shared boundary, and the parties' respective rights and duties related to the concrete fence and other conditions pertaining to the concrete fence."

Any person who desires a declaration of his or her rights or duties with respect to another may in cases of actual controversy relating to the legal rights and duties of the respective parties seek a declaration. (Code Civ. Proc., § 1060.) Claims for declaratory relief become moot when an event occurs with "deprives the controversy of its life." (*Roger v. County of Riverside* (2020) 44 Cal.App.5th 510, 530.)

The demurrer is again based on the purported fact that the MacNeills no longer live as tenants on the Loyola property. But again, they cannot base a demurrer on facts extraneous to the pleading under attack, and only set forth in their own separate pleading.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on June 17, 2026
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: ***Hoskins v. Crescent View South Inc. et al.***
Superior Court Case No. 25CECG00970

Hearing Date: June 18, 2026 (Dept. 403)

Motion: By Defendants to Compel Arbitration

Tentative Ruling:

To deny. (Code Civ. Proc., § 1281.2, subd. (a).)

Explanation:

In this employment action plaintiff sues her alleged former joint employers Crescent View South, Inc. dba Learn4Life dba Kings Valley Academy II ("CVS") and Lifelong Learning Administration Corp. ("LLAC") for retaliation and other employment claims. Defendants move to compel arbitration pursuant to a Mandatory Arbitration Policy electronically signed by plaintiff on July 17, 2023.

A trial court is required to grant a motion to compel arbitration "if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc., § 1281.2) However, there is "no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate." (*Garlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505) Thus, when a motion to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine: (1) whether the agreement exists, and (2) if any defense to its enforcement is raised, whether it is enforceable. The moving party bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. The party claiming a defense bears the same burden as to the defense. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)

Here, while the court finds that there is an agreement to arbitrate (even if forced upon plaintiff as a condition of continued employment), the motion will be denied because defendants have waived the right to compel arbitration.

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that ... the right to compel arbitration has been waived by the petitioner" (Code Civ. Proc., § 1281.2, subd. (a).) "To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it." (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) The waiving party's knowledge of the right may be actual or constructive. (*ibid.*, citing *Outboard Marine Corp. v. Superior Court* (1975) 52 Cal.App.3d 30, 41.)

Intentional relinquishment or abandonment of the right to arbitrate may be express or implied. (*Quach, supra*, 16 Cal.5th at pp. 569, 584.) Express intentional relinquishment or abandonment may be shown by "evidence of words expressing an intent to relinquish the right." (*Id.* at p. 584.) Implied intentional relinquishment or abandonment may be shown by "conduct [including litigating the case in a judicial forum] that is so inconsistent with an intent to enforce the contractual right [to arbitrate] as to lead a reasonable fact finder to conclude that the party had abandoned it." (*Ibid.*; see generally *Waller v. Truck Ins. Exchange, Inc.* (1995) 11 Cal.4th 1, 31 [looking to conduct is appropriate in assessing waiver].)

In analyzing waiver, the following factors may be relevant: " "(1) whether the party's actions are inconsistent with the right to arbitrate; (2) whether "the litigation machinery has been substantially invoked" and the parties "were well into preparation of a lawsuit" before the party notified the opposing party of an intent to arbitrate; (3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; and (5) "whether important intervening steps [e.g., taking advantage of judicial discovery procedures not available in arbitration] had taken place." "" " (*Id.* at p. 573, quoting *St. Agnes Med. Ctr. v. PacifiCare of Calif.* (2003) 31 Cal.4th 1187, 1196.)

The court finds that these factors favor finding that defendants waived the right to compel arbitration. Thirteen months passed between plaintiff's filing of the Complaint and defendants' filing of the motion to compel arbitration. Defendants assert that they did not learn of the existence of the agreement to arbitrate because it was stored in a separate electronic onboarding and acknowledgment repository rather than in the personnel file initially gathered for this litigation. Even if defense counsel were not immediately and initially aware of the arbitration agreement, one of the first things any employment defense counsel would do is inquire about the existence of an arbitration agreement. And defendants' personnel would certainly know of the arbitration policy and practice, which appears ubiquitous for all employees, and should have communicated that to counsel if arbitration was something the employers wanted to pursue. The employee handbooks produced by defendants in this litigation set forth an arbitration policy and sample arbitration agreement which employees are required to sign annually. (Plaintiff's Exhs. 4, 5.) LLAC Chief HR Officer Perkins attested that CVS presented all new hires with form arbitration agreements through an online onboarding process. The new hire accessed the onboarding documents via a password, then electronically signed a variety of new-hire forms, including the arbitration agreement. The arbitration agreements were stored in a separate onboarding repository apart from the employee's personnel file. (Perkins Decl., ¶ 10.) Perkins had access to this repository and knew where to search for any signed arbitration agreements. (Perkins Decl., ¶¶ 2-3.) Despite this access and ability, Perkins did not search for the signed agreement signed by plaintiff Hoskins until November 2025. (Perkins Decl., ¶ 11.) The court finds that defendants at the very least had constructive knowledge of the arbitration agreement all along.

Moreover, defendants engaged in significant litigation activity in this court before moving to compel arbitration. Defendants answered the complaint, and participated in

discovery and motion practice regarding discovery disputes. Defendants stated their preference for a jury trial on their case management conference statement filed on June 25, 2025. On that filing defendants left the box blank for indicating it was "willing to participate" in arbitration, and represented that the only motion it intended to file was a "dispositive motion." (Plaintiff's Exh. 11.) At the conference, Defendants agreed to the March 22, 2027 trial date. (Plaintiff's Exh. 13.)

Defendants actively engaged in discovery, produced thousands of documents, obtained discovery responses and document production from plaintiff, met and conferred with plaintiff's counsel about discovery disputes, attended two Pre-Trial Discovery Conferences, and entered into two Stipulations and Order to be bound by this court's proceedings. (Plaintiff's Exhs. 14-16, 18-21, 23, 25.) And even after the purported discovery of the arbitration agreement in November 2025, defendants waited another four months to file a motion to compel arbitration. The court finds that defendants, through their litigation conduct in this judicial forum, waived the right to compel arbitration.

It is unnecessary to address plaintiff's other arguments against compelling arbitration. However, the court notes that all evidentiary objections are overruled.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** June 17, 2026 .
(Judge's initials) (Date)